

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Justin Huang	Team: Squad #10	CCRB Case #: 202107890	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 12/08/2021 10:20 PM, Wednesday, 12/08/2021 10:40 PM, Wednesday, 12/08/2021 11:12 PM	Location of Incident: § 87(2)(b) [REDACTED]	18 Mo. SOL 6/8/2023	Precinct: 69
Date/Time CV Reported Wed, 12/29/2021 8:10 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 12/29/2021 8:10 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. PO Aubrey Hammond	01464	966610	069 PCT
2. PO Shannon Walter	11923	968881	069 PCT
3. PO Sergio Meneses	14069	968637	069 PCT
4. PO Christopher Conlin	21331	953773	PSA 1
5. PO Christopher Beary	09889	970410	PSA 1
6. PO Michael Sannella	00374	952211	069 PCT
7. PO Robert Link	09628	961892	069 PCT
8. LT Sheldon Arrindell	00000	944335	069 PCT
9. SGT Dana Martillo	02415	945954	069 PCT
10. DT3 Jason Sharp	03276	935731	069 DET
11. DT2 Michael Spera	04258	924518	069 DET
12. PO Daniel Davidoff	08756	961722	069 DET
13. PO Denise Garciatorres	12932	969719	069 PCT
14. PO Travis Young	27025	953594	069 PCT
15. PO Ahmad Yaqubi	15829	966403	069 PCT
16. PO Andre Morris	15124	956955	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Ridhwanul Rabbe	25619	969307	069 PCT
2. PO India Greene	18828	967907	069 PCT
3. PO Sean Batt	24194	968267	063 PCT
4. PO John Brennan	12838	960275	063 PCT
5. PO Pardeep Dhaliwal	24567	969048	069 PCT
6. PO Camica Raffington	07667	966792	PSA 1
7. PO Michael Cioffi	24252	963217	063 PCT
8. PO Conor Cunningham	00822	966011	069 PCT
9. PO Thomas Duignan	00850	966041	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
10. PO Sergio Martins	19109	964146	063 PCT
11. LT Darek Krala	00000	936887	PSA 1
12. PO Bashir Hassan	21592	969109	069 PCT
13. PO Sergio Garciacastillo	21288	968427	PSA 1
14. PO Darren Zhumi	11346	966410	069 PCT
15. PO Ioana Matiuta	11291	956897	069 PCT
16. PO Rachel Picard	23016	970088	PSA 9
17. PO Travis Smikle	04649	966860	069 DET
18. PO Paulewin Maurice	17495	955152	POL ACAD
19. PO Kendra Coleman	25483	963920	069 PCT
20. PO Daniel Irving	23396	969817	069 PCT
21. SGT Thomas Then	02585	952289	M COURT
22. PO Kingsley Okafor	02067	970747	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Sergio Meneses	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Sergio Meneses threatened § 87(2)(b) with the use of force.	A . Within NYPD Guidelines
B . PO Sergio Meneses	Force: At § 87(2)(b) in Brooklyn, Police Officer Sergio Meneses used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Shannon Walter	Force: At § 87(2)(b) in Brooklyn, Police Officer Shannon Walter used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . PO Sergio Meneses	Force: At § 87(2)(b) in Brooklyn, Police Officer Sergio Meneses used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Shannon Walter	Abuse: Police Officer Shannon Walter entered § 87(2)(b) in Brooklyn.	E . Within NYPD Guidelines
F . PO Sergio Meneses	Abuse: Police Officer Sergio Meneses entered § 87(2)(b) in Brooklyn.	F . Within NYPD Guidelines
G . PO Shannon Walter	Abuse: Police Officer Shannon Walter searched § 87(2)(b) in Brooklyn.	G . Within NYPD Guidelines
H . PO Sergio Meneses	Abuse: Police Officer Sergio Meneses searched § 87(2)(b) in Brooklyn.	H . Within NYPD Guidelines
I . PO Ahmad Yaqubi	Force: At § 87(2)(b) in Brooklyn, Police Officer Ahmad Yaqubi used physical force against § 87(2)(b)	I . Within NYPD Guidelines
J . PO Michael Sannella	Force: At § 87(2)(b) in Brooklyn, Sergeant Michael Sannella used physical force against § 87(2)(b)	J . Within NYPD Guidelines
K . PO Andre Morris	Force: At § 87(2)(b) in Brooklyn, Police Officer Andre Morris used physical force against § 87(2)(b)	K . Within NYPD Guidelines
L . PO Aubrey Hammond	Force: At § 87(2)(b) in Brooklyn, Police Officer Aubrey Hammond used physical force against § 87(2)(b)	L . Within NYPD Guidelines
M . LT Sheldon Arrindell	Force: At § 87(2)(b) in Brooklyn, Lieutenant Sheldon Arrindell used physical force against § 87(2)(b)	M . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
N . PO Robert Link	Force: At § 87(2)(b) in Brooklyn, Police Officer Robert Link used physical force against § 87(2)(b)	N . Within NYPD Guidelines
O . DT3 Jason Sharp	Force: At § 87(2)(b) in Brooklyn, Detective Jason Sharp used physical force against § 87(2)(b)	O . Within NYPD Guidelines
P . DT2 Michael Spera	Force: At § 87(2)(b) in Brooklyn, Detective Michael Spera used physical force against § 87(2)(b)	P . Within NYPD Guidelines
Q . PO Travis Young	Force: At § 87(2)(b) in Brooklyn, Police Officer Travis Young used physical force against § 87(2)(b)	Q . Miscellaneous - Subject Resigned
R . LT Sheldon Arrindell	Discourtesy: At § 87(2)(b) in Brooklyn, Lieutenant Sheldon Arrindell acted discourteously toward § 87(2)(b)	R . Within NYPD Guidelines
S . DT3 Jason Sharp	Discourtesy: At § 87(2)(b) in Brooklyn, Detective Jason Sharp acted discourteously toward § 87(2)(b)	S . Within NYPD Guidelines
T . DT2 Michael Spera	Discourtesy: At § 87(2)(b) in Brooklyn, Detective Michael Spera acted discourteously toward § 87(2)(b)	T . Within NYPD Guidelines
U . PO Robert Link	Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Robert Link acted discourteously toward § 87(2)(b)	U . Within NYPD Guidelines
V . DT2 Michael Spera	Discourtesy: At § 87(2)(b) in Brooklyn, Detective Michael Spera spoke discourteously to § 87(2)(b)	V . Substantiated
W . SGT Dana Martillo	Discourtesy: At the 69th Precinct station house, Sergeant Dana Martillo acted discourteously toward § 87(2)(b)	W . Within NYPD Guidelines
X . SGT Dana Martillo	Force: At the 69th Precinct station house, Sergeant Dana Martillo used physical force against § 87(2)(b)	X . Within NYPD Guidelines
Y . PO Christopher Conlin	Force: At the 69th Precinct station house, Police Officer Christopher Conlin used physical force against § 87(2)(b)	Y . Within NYPD Guidelines
Z . PO Christopher Beary	Force: At the 69th Precinct station house, Police Officer Christopher Beary used physical force against § 87(2)(b)	Z . Within NYPD Guidelines
AA. SGT Dana Martillo	Discourtesy: At the 69th Precinct station house, Sergeant Dana Martillo spoke discourteously to § 87(2)(b)	AA. Substantiated
AB. SGT Dana Martillo	Abuse: At the 69th Precinct station house, Sergeant Dana Martillo threatened § 87(2)(b) with the use of force.	AB. Substantiated
AC. PO Daniel Davidoff	Abuse: At the 69th Precinct station house, Police Officer Daniel Davidoff threatened § 87(2)(b) with the use of force.	AC. Within NYPD Guidelines
AD. PO Daniel Davidoff	Discourtesy: At the 69th Precinct station house, Police Officer Daniel Davidoff spoke discourteously to § 87(2)(b)	AD. Substantiated
AE. PO Denise Garciatorres	Discourtesy: At the 69th Precinct station house, Police Officer Denise Garciatorres spoke discourteously to § 87(2)(b)	AE. Unfounded
§ 87(4-b) § 87(2)(g)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On December 29, 2021, § 87(2)(b) filed this complaint on behalf of herself and her son, § 87(2)(b) with the CCRB by phone.

§ 87(2)(g)

On December 8, 2021, at approximately 8:20 p.m., PO Sergio Meneses and PO Shannon Walter, both of the 69th Precinct, responded to a 911 call regarding a robbery in progress and chased § 87(2)(b) to § 87(2)(b) apartment, located at § 87(2)(b) in Brooklyn. Outside of § 87(2)(b) apartment, PO Meneses pointed a taser at § 87(2)(b) (**Allegation A: Abuse of Authority – Threat of Force, Within NYPD Guidelines**). PO Meneses and PO Walter grabbed, pulled, and pushed § 87(2)(b) while trying to place him into handcuffs (**Allegations B and C: Force – Physical Force, Within NYPD Guidelines**). PO Meneses pushed § 87(2)(b) (**Allegation D: Force – Physical Force, Within NYPD Guidelines**). PO Walter and PO Meneses entered and searched § 87(2)(b)'s apartment (**Allegations E and F: Abuse of Authority – Entry of Premises, Within NYPD Guidelines**) (**Allegations G and H: Abuse of Authority – Search of Premises, Within NYPD Guidelines**). § 87(2)(b) friend, § 87(2)(b) was present in the apartment.

PO Michael Sannella, PO Ahmad Yaqubi, PO Andre Morris, and PO Aubrey Hammond, all of the 69th Precinct (PO Sannella has since been promoted to sergeant and transferred to the Force Analysis Division, and PO Morris has since been transferred to the 84th Precinct Detective Squad) used physical force when placing § 87(2)(b) in handcuffs (**Allegations I-L: Force – Physical Force, Within NYPD Guidelines**). Lieutenant Sheldon Arrindell, of the 69th Precinct, fought with § 87(2)(b) (**Allegation M: Force – Physical Force, Within NYPD Guidelines**). PO Robert Link, of the 69th Precinct, and Det. Jason Sharp and Det. Michael Spera, both from the 69th Precinct Detective Squad, dragged § 87(2)(b) out of § 87(2)(b) apartment (**Allegations N-P: Force – Physical Force, Within NYPD Guidelines**). PO Travis Young, of the 69th Precinct, also used physical force when placing § 87(2)(b) in handcuffs (**Allegation Q: Force – Physical Force, Miscellaneous**). Lieutenant Arrindell, Det. Sharp, Det. Spera and PO Link escorted § 87(2)(b) out of the apartment while § 87(2)(b) was in his undergarments and did not allow him to put clothes on. (**Allegation R-U: Discourtesy – Action, Within NYPD Guidelines**). Det. Spera told § 87(2)(b) “Let me catch my fucking breath” (**Allegation V: Discourtesy – Word, Substantiated**).

§ 87(2)(b) was transported to the 69th Precinct Station House at approximately 8:40PM. Sgt. Dana Martillo, of the 69th Precinct, did not allow § 87(2)(b) to put on clothing (**Allegation W: Discourtesy – Action, Within NYPD Guidelines**). Sgt. Martillo, PO Christopher Conlin and PO Christopher Beary, also of the 69th Precinct, pushed § 87(2)(b) (**Allegations X-Z: Force – Physical Force, Within NYPD Guidelines**). Sgt. Martillo told § 87(2)(b) “No, no, I will fucking zap you! Don’t even think I won’t” (**Allegation AA: Discourtesy – Word, Substantiated**). Sgt. Martillo pointed her taser at § 87(2)(b) while Police Officer Daniel Davidoff verbally threatened § 87(2)(b) with the use of force (**Allegation AB: Abuse of Authority – Threat of Force, Substantiated**) (**Allegation AC: Abuse of Authority – Threat of Force, Within NYPD Guidelines**). PO Davidoff told § 87(2)(b) “Go in there and chill the fuck out” (**Allegation AD: Discourtesy – Word, Substantiated**). PO Denise Garciatorres, of the 69th Precinct, told § 87(2)(b) “Get the fuck off the phone,” when she went to the 69th Precinct station house at 11:12PM (**Allegation AE: Discourtesy – Word, Unfounded**).

§ 87(4-b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(a) 160.50

The CCRB received BWC footage from the NYPD Legal Department that captures the incidents at § 87(2)(b) and the 69th Precinct station house (BR04, 05, 11, 12, 18, 22, 23).

Findings and Recommendations

Allegation (A) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Sergio Meneses threatened § 87(2)(b) with the use of force.

Allegation (B) Force: At § 87(2)(b) in Brooklyn, Police Officer Sergio Meneses used physical force against § 87(2)(b)

Allegation (C) Force: At § 87(2)(b) in Brooklyn, Police Officer Shannon Walter used physical force against § 87(2)(b)

Allegation (D) Force: At § 87(2)(b) in Brooklyn, Police Officer Sergio Meneses used physical force against § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Shannon Walter entered § 87(2)(b) in Brooklyn.

Allegation (F) Abuse of Authority: Police Officer Sergio Meneses entered § 87(2)(b) in Brooklyn.

Allegation (G) Abuse of Authority: Police Officer Shannon Walter searched § 87(2)(b) in Brooklyn.

Allegation (H) Abuse of Authority: Police Officer Sergio Meneses searched § 87(2)(b) in Brooklyn.

§ 87(2)(b) (BR02) stated that he and his friend, § 87(2)(b) were inside a bodega on the corner of Seaview Avenue and Rockaway Parkway in Brooklyn when the bodega owner accused § 87(2)(b) of trying to steal a beer and called the police. § 87(2)(b) and § 87(2)(b) walked back to § 87(2)(b) family apartment at § 87(2)(b). Once inside the building, four to five uniformed officers approached § 87(2)(b) and told him to stop, but § 87(2)(b) did not respond because he was on parole and wanted to avoid trouble. § 87(2)(b) walked to his apartment door and knocked. Suddenly, three uniformed officers grabbed § 87(2)(b) by his neck, arm, and body. § 87(2)(b) did not see the officers grab § 87(2)(b). A moment later, § 87(2)(b) opened the front door, and § 87(2)(b) ran into the apartment. The same three uniformed officers tried to grab § 87(2)(b) and throw her to the floor, but § 87(2)(b) was able to close the door and keep the officers outside. After entering the apartment, § 87(2)(b) went to his bedroom and took off his clothing to change. As § 87(2)(b) was exiting the bedroom, several officers walked into the apartment and went down the hallway toward where he was.

§ 87(2)(b) (BR03) stated that she and § 87(2)(b) were inside the apartment when she heard frantic knocking at the front door. When she opened it, she saw two police officers alongside § 87(2)(b). § 87(2)(b) fell on his stomach as he tried to get through the door, and § 87(2)(b) body entered partway through the front door. One officer tried to grab § 87(2)(b) leg and fell on top of § 87(2)(b) back, and the other officer fell on top of both § 87(2)(b) and the officer. § 87(2)(b) pulled § 87(2)(b) by his shoulders into the house and tried to close the door. As she did so, multiple officers ran into the apartment by pushing the door open, while another officer pushed § 87(2)(b) on the chest, causing her to fall to the ground on her back. § 87(2)(b) observed the officers run to the back of the apartment, where § 87(2)(b) had gone.

into one of the bedrooms.

§ 87(2)(b) did not provide a statement to the CCRB.

BWC footage from PO Meneses (**BR04**) and PO Walter (**BR05**) shows that at 01:11 and 01:07, respectively, the owner of the bodega tells the officers “He hit me in my head. He’s right there,” and points further down the sidewalk while running toward § 87(2)(b). At 01:25 in PO Meneses’ BWC, PO Meneses and PO Walter follow the bodega owner and run down the sidewalk. PO Walter chases § 87(2)(b) into § 87(2)(b). Once inside, PO Meneses turns left and sees § 87(2)(b) pounding on an apartment door. At 02:00, PO Meneses walks toward § 87(2)(b) and asks to see his hands. When § 87(2)(b) does not do so, PO Meneses pulls out his Taser and points it at § 87(2)(b) while telling him to see his hands again. PO Meneses walks closer and pushes § 87(2)(b) against the wall while telling him to show his hands. At 02:15 in PO Walters’ BWC, PO Walter runs toward § 87(2)(b) who is on the floor, and PO Meneses, who is standing over him trying to place him in handcuffs. PO Walter assists by grabbing § 87(2)(b) hands while telling him to put his hands behind his back, which § 87(2)(b) refuses to do. At 02:30, § 87(2)(b) comes out of her apartment and grabs onto the officers. At 02:50 in PO Meneses’ BWC, PO Meneses, § 87(2)(b) and § 87(2)(b) all fall through the doorway of the apartment and onto the ground. At 03:50, § 87(2)(b) escapes PO Meneses’s grasp and runs further into the apartment. § 87(2)(b) and § 87(2)(b) attempt to push out PO Meneses and close the door on him while he is still on the ground partway through the doorframe. At 04:27, as § 87(2)(b) tries to close the door, PO Meneses says “my leg” multiple times, then appears to yell out in pain in response to § 87(2)(b) actions.

At 09:38 in PO Meneses’ BWC footage (**BR04**), PO Meneses gets up and enters the apartment. PO Meneses picks up something in the living room, then says out loud, “I’ve got my shield.” PO Meneses walks through the living room and down the hallway until he gets to a bedroom with a closed door and says, “I think he’s in here.” At 10:26, PO Meneses pushes open the bedroom door and finds § 87(2)(b) inside. At 09:46 in PO Walters’ BWC footage, PO Walter enters the apartment along with several other officers, who arrived in response to her calling for backup, and go straight to the bedroom PO Meneses went to.

PO Meneses (**BR06**) stated that he and PO Walter responded to a 911 call regarding a larceny at a bodega. Upon arrival, the bodega owner claimed that someone hit him, then pointed to § 87(2)(b) who was wearing a red sweater and walking approximately 20 to 30 feet ahead of them. PO Meneses and PO Walter ran after § 87(2)(b) and asked him to stop multiple times. § 87(2)(b) turned and looked at the officers, then ran inside an apartment building at § 87(2)(b). PO Meneses and PO Walter ran inside after him and saw him at the end of the first-floor hallway, banging on an apartment door. PO Meneses approached § 87(2)(b) with his Taser pointed at § 87(2)(b) due to his concern that § 87(2)(b) could be violent and in possession of a weapon. PO Meneses asked § 87(2)(b) to see his hands and turn around. § 87(2)(b) did not comply and only asked what he did. PO Meneses pulled § 87(2)(b) away from the door by grabbing his armpits and tried to grab his hands to place him in handcuffs, but § 87(2)(b) resisted by clasping his hands together. At some point, both PO Meneses and § 87(2)(b) ended up on the floor.

Approximately one minute later, § 87(2)(b) opened the door, pushed PO Walter and PO Meneses away from § 87(2)(b) and picked up § 87(2)(b). PO Meneses tried to handcuff § 87(2)(b) but § 87(2)(b) refused to give his arms, and both PO Meneses and § 87(2)(b) fell into the doorway with PO Meneses’ body halfway inside of the apartment. § 87(2)(b) pushed PO Meneses and PO Walter back and tried to close the door, but the positioning of PO Meneses’ body prevented her from doing so. § 87(2)(b) had also grabbed PO Meneses’s neck, which restricted his breathing, and tried to push him out of the doorframe before trying to close the door. § 87(2)(b) was able to slip out from under PO Meneses’ body and run further into the apartment.

At some point, § 87(2)(b) ripped PO Meneses’ shield from his uniform and threw it into the apartment. After a few minutes, additional officers arrived and helped hold the door open

so that PO Meneses could get up. PO Meneses fully entered the apartment in order to find § 87(2)(b). PO Meneses retrieved his shield from the kitchen, then went to a bedroom with a closed door at the end of the hall. Upon entering the bedroom, PO Meneses saw § 87(2)(b) who was only wearing boxers and was holding a baby in his arms. His sole purpose in entering the bedroom was to arrest § 87(2)(b).

PO Walter's statement (BR07) was generally consistent with that of PO Meneses with the following exceptions noted. § 87(2)(b) resisted being handcuffed by putting his hands in his pockets. PO Walter assisted in trying to handcuff § 87(2)(b) by moving § 87(2)(b) left arm, while PO Meneses grabbed § 87(2)(b) right arm. When § 87(2)(b) tried to close the door, she could not because PO Walter had her foot in the doorway and PO Meneses was halfway inside of the apartment on the ground. PO Walter looked inside an open room but did not enter it on her way to the back bedroom to arrest § 87(2)(b).

A TRI (BR32) prepared in regard noted that PO Walter and PO Meneses pursued § 87(2)(b) on foot after the 911 caller identified him. Upon pursuing him into the apartment complex and toward apartment § 87(2)(b), PO Meneses ordered § 87(2)(b) to place his hands behind his back. PO § 87(2)(b) [sic] resisted by flailing his arms, placing his arms under his body, and refusing to comply with PO Meneses' orders. While resisting arrest, § 87(2)(b) began pulling § 87(2)(b) inside the apartment and pushing both officers out simultaneously. § 87(2)(b) placed both hands around PO Meneses' neck while applying pressure, causing pain, and intentionally struck both officers with the apartment door in efforts to close it. § 87(2)(b) actions caused PO Meneses to suffer § 87(2)(b) and PO Walter suffered § 87(2)(b) at which point PO Walter called in a 10-13 over division radio.

Two medical treatment of prisoner reports (MTPR) (BR33) prepared for § 87(2)(b) note that officers called for an ambulance because § 87(2)(b) reported having difficulty breathing and high blood pressure, but § 87(2)(b) refused medical attention on scene.

NYPD Patrol Guide Procedure 221-01 (BR08) states that "Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances."

United States v. Santana, 427 U.S. 38 (BR09) stated that a suspect may not defeat an arrest which has been set in motion in a public place, by the expedient of escaping to a private place. A suspect's entry into their home during a hot pursuit does not halt the pursuit. The police may enter the location where a suspect has taken refuge, even if it is their own home. Hot Pursuit is defined as some sort of a chase, but it need not be an extended hue and cry in and about the public streets.

People v. Watson, 115 A.D.3d 687 (BR10) found a true Hot Pursuit may justify a warrantless entry.

Patrol Guide Procedure 221-08 (BR 21) states that Tasers should only be used against persons who are actively resisting, exhibiting active aggression or to prevent individuals from physically injuring themselves or other persons. Active Resistance includes physically evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody.

§ 87(2)(g)

It is therefore recommended that Allegations A-H be closed as **Within NYPD Guidelines**.

Allegation (I) Force: At § 87(2)(b) in Brooklyn, Police Officer Ahmad Yaqubi used physical force against § 87(2)(b)

Allegation (J) Force: At § 87(2)(b) in Brooklyn, Sergeant Michael Sannella used physical force against § 87(2)(b)

Allegation (K) Force: At § 87(2)(b) in Brooklyn, Police Officer Andre Morris used physical force against § 87(2)(b)

Allegation (L) Force: At § 87(2)(b) in Brooklyn, Police Officer Aubrey Hammond used physical force against § 87(2)(b)

Allegation (M) Force: At § 87(2)(b) in Brooklyn, Lieutenant Sheldon Arrindell used physical force against § 87(2)(b)

Allegation (N) Force: At § 87(2)(b) in Brooklyn, Police Officer Robert Link used physical force against § 87(2)(b)

Allegation (O) Force: At § 87(2)(b) in Brooklyn, Detective Jason Sharp used physical force against § 87(2)(b)

Allegation (P) Force: At § 87(2)(b) in Brooklyn, Detective Michael Spera used physical force against § 87(2)(b)

Allegation (Q) Force: At § 87(2)(b) in Brooklyn, Police Officer Travis Young used physical force against § 87(2)(b)

§ 87(2)(b) (BR02) stated that upon entering the bedroom, several officers handcuffed him, picked him up by his arms and legs, and carried him out of the apartment and into a patrol vehicle outside. No commands were given while § 87(2)(b) was handcuffed, and § 87(2)(b) was not given a chance to stand up on his own before being carried out.

§ 87(2)(b) (BR03) stated that the officers went to the bedroom where § 87(2)(b) was located, arrested him, then pushed and dragged him out of the apartment.

A TRI (BR32) report prepared in regard to the incident noted that PO Young, PO Meneses, PO Walter, PO Hammond, PO Morris, PO Yaqubi, PO Young, PO Link, and PO Sannella used a forcible takedown and wrestling/grappling to overcome active resistance and force against officers.

BWC footage from Lieutenant Arrindell (BR11) shows that at 3:00, multiple officers place § 87(2)(b) in handcuffs while he is face-down on the ground. Lieutenant Arrindell stands behind the officers and observes them. At 06:14, § 87(2)(b) is escorted out of the bedroom after being handcuffed. § 87(2)(b) then says, “See how I broke the cuff?” and shows that the handcuffs are no longer secured by bringing his arms to the front. Lieutenant Arrindell grabs one of § 87(2)(b) arms as other officers attempt to get § 87(2)(b) back into handcuffs. Lieutenant Arrindell then lets go of § 87(2)(b) arm and steps back as other officers eventually re-cuff § 87(2)(b). While attempting to escort him out again, § 87(2)(b) slumps down to the ground and does not get up.

BWC footage from PO Link (BR12) shows that, at 10:10, PO Link, Det. Sharp, and Det. Spera carry § 87(2)(b) out of the apartment. Det. Sharp and Det. Spera each hold one of § 87(2)(b) legs while PO Link holds § 87(2)(b) by his arms/armpits. At 10:42, outside of the apartment, PO Link, Det. Spera and Det. Sharp, when they reach the outside of the apartment, put § 87(2)(b) down.

Lieutenant Arrindell (BR13) stated that the handcuffs were not properly secured when § 87(2)(b) was handcuffed the first time, and there was a concern that § 87(2)(b) might escape or pose a physical threat to officers. Lieutenant Arrindell assisted other officers in re-securing § 87(2)(b) so that the handcuffs would not come loose a second time.

PO Link (BR14) stated that when he and other officers attempted to escort him out of the bedroom, § 87(2)(b) “went limp” by dropping to the ground and sat down with his legs extended in front of him and refused to walk under his own power. § 87(2)(b) also broke out of his handcuffs due to them not being secured properly and threw himself onto the bed. PO Link and other officers then had to re-cuff § 87(2)(b) by grabbing his arms and placing them behind his back. When he was escorted out of the bedroom, § 87(2)(b) again went limp, and PO Link and

the officers escorting him had to carry § 87(2)(b) from the bedroom to the apartment door, where § 87(2)(b) told the officers that he would stand on his own. The officers placed § 87(2)(b) in a sitting position, and § 87(2)(b) stood up on his own power. PO Link and other officers escorted him to a marked vehicle.

Det. Sharp (BR15) stated that he spoke with Det. Spera and both decided to carry § 87(2)(b) out of the apartment because the bedroom they were in was a small and confined space, there were lots of officers present, which made the scene chaotic, the officers were unfamiliar with the apartment and did not know if there were any weapons present, and because they wanted to end the incident in order to avoid escalations from any civilians outside by remaining at the scene.

Det. Spera (BR16) realized that § 87(2)(b) was not going to leave voluntarily when § 87(2)(b) refused to get up and walk out on his own power. Det. Spera decided to carry § 87(2)(b) out and cited safety concerns stemming from the confined space and the potential for officers to trip and fall on top of § 87(2)(b) as well as the presence of additional civilians inside apartment and not knowing if there were weapons in the apartment.

PO Hammond, PO Morris, PO Yaqubi, and PO Sannella were not interviewed, as the investigation was able to reach a disposition without their statements.

A CTS search showed that PO Young was no longer an active member of service as of March 2022 (BR35). A call to the 69th Precinct roll call revealed that PO Young had resigned from service (BR36).

NYPD Patrol Guide Procedure 221-01 (BR08) states that “Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances.”

§ 87(2)(g)

It is therefore recommended that **Allegations I-P** be closed as **Within NYPD Guidelines**. It is also recommended that **Allegation Q** be closed as **Miscellaneous – Officer Resigned**.

Allegation (R) Discourtesy: At § 87(2)(b) in Brooklyn, Lieutenant Sheldon Arrindell acted discourteously toward § 87(2)(b)

Allegation (S) Discourtesy: At § 87(2)(b) in Brooklyn, Detective Jason Sharp acted discourteously toward § 87(2)(b)

Allegation (T) Discourtesy: At § 87(2)(b) in Brooklyn, Detective Michael Spera acted discourteously toward § 87(2)(b)

Allegation (U) Discourtesy: At § 87(2)(b) in Brooklyn, Police Officer Robert Link acted discourteously toward § 87(2)(b)

Allegation (V) Discourtesy: At § 87(2)(b) in Brooklyn, Detective Michael Spera spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) and arrested and removed from the incident location while dressed only in his undergarments.

§ 87(2)(b) (BR02) stated that when he was handcuffed and brought outside to a patrol vehicle, he was never given the opportunity to wear any clothing, and only had on his boxers. Upon being transported to the 69th Precinct and being placed in a holding cell, § 87(2)(b) at first received a sheet to cover himself, then eventually received clothing that § 87(2)(b) dropped off for him.

BWC footage from PO Link (BR12) shows that at 10:10, he and other officers carry § 87(2)(b) outside of the apartment, then place him on the floor just outside the doorframe. At 10:58, Det. Spera and Det. Sharp ask § 87(2)(b) if he is going to walk, and § 87(2)(b) said that he will. At 11:06, Det. Spera and PO Link assist § 87(2)(b) as he stands up and hold him against the

wall. § 87(2)(b) asks Det. Spera what he is being arrested for. In response, at 11:18, Det. Spera says, "Let me catch my fucking breath." § 87(2)(b) was then escorted outside to a police vehicle. § 87(2)(b) was not given an opportunity to put on clothing, nor was he clothed before being escorted outside.

Lieutenant Arrindell (BR13) stated that § 87(2)(b) was not given the opportunity to get dressed while inside the apartment because he was resisting arrest. Lieutenant Arrindell felt that officers' safety could be compromised if the handcuffs were removed from § 87(2)(b). Thus, Lieutenant Arrindell and other officers told § 87(2)(b) to collect some clothing in order for § 87(2)(b) to receive while at the station house.

Det. Spera (BR16) stated that § 87(2)(b) was not given the opportunity to wear clothing while at the apartment due to the chaotic nature situation of the incident location: multiple officers in a confined space, § 87(2)(b) active resistance, the presence of other civilians inside, and concerns for officers' and § 87(2)(b) safety. Det. Spera had no recollection of saying, "Let me catch my fucking breath" to § 87(2)(b) until viewing PO Link's BWC footage and did not remember why he made that statement.

Det. Sharp (BR15) stated that when he arrived, § 87(2)(b) was dressed only his boxers. There was no effort to get § 87(2)(b) into clothing because he was resisting attempts to place him in handcuffs and the officers wanted to get him out as quickly as possible for safety concerns: confined space, multiple officers moving around, potential presence of weapons in the apartment, and possible escalation from crowd buildup.

PO Link (BR14) stated that it was a chaotic situation, given § 87(2)(b) behavior and the confined space of the bedroom. It was therefore best to remove § 87(2)(b) to the station house as a first priority. In addition, § 87(2)(b) would be given the opportunity to be given/put on clothing once he got to the station house.

NYPD Patrol Guide 200-02 (BR17) states that officers are committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others.

Deputy Commissioner of Trials case 2018-18951 (BR34) states that officers have a responsibility to act with decorum when interacting with civilians, and that an officer's use of profanity is unprofessional and discourteous. Exceptions are made for when an officer uses profanity during chaotic and stressful situations.

§ 87(2)(g)

It is therefore recommended that **Allegations R-U** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

It is therefore recommended that **Allegation V** be **Substantiated**.

Allegation (W) Discourtesy: At the 69th Precinct station house, Sergeant Dana Martillo acted discourteously toward § 87(2)(b)

Allegation (X) Force: At the 69th Precinct station house, Sergeant Dana Martillo used physical force against § 87(2)(b)

Allegation (Y) Force: At the 69th Precinct station house, Police Officer Christopher Conlin used physical force against § 87(2)(b)

Allegation (Z) Force: At the 69th Precinct station house, Police Officer Christopher Beary

used physical force against § 87(2)(b)

Allegation (AA) Discourtesy: At the 69th Precinct station house, Sergeant Dana Martillo spoke discourteously to § 87(2)(b)

Allegation (AB) Abuse of Authority: At the 69th Precinct station house, Sergeant Dana Martillo threatened § 87(2)(b) with the use of force.

§ 87(2)(b) (BR02) stated that an officer pushed him upon entering the 69th Precinct station house. In addition, while § 87(2)(b) was being processed at the front desk, another officer injured § 87(2)(b) face, causing him to bleed. § 87(2)(b) was then placed in a holding cell. § 87(2)(b) at first was given a sheet to cover himself, and then was eventually given clothing that § 87(2)(b) had dropped off for him.

BWC footage from PO Conlin (BR18) shows that at 07:30, PO Conlin and PO Beary escort § 87(2)(b) into the station house. Upon entering the station house, PO Conlin and PO Beary fill out some paperwork. At 10:04, someone at the desk tells PO Conlin to put § 87(2)(b) in the back cell. § 87(2)(b) says officers will have to kill him before putting him in the cell half-naked. PO Conlin and his partner both put their hands on § 87(2)(b)'s shoulder area. PO Davidoff tells him if he goes in the cell, other officers will bring him his jeans and sneakers. At 10:48, § 87(2)(b) tries to drop to the floor, but two officers hold him up. He then falls all the way to the floor. Sgt. Martillo says, "Just leave him on the floor." § 87(2)(b)'s legs move around on the floor. Sgt. Martillo says, "No, no, I will fucking zap you! Don't even think I won't." § 87(2)(b) says, "You can do it." Sgt. Martillo says, "Yank his fucking hands back." Sgt. Martillo, PO Conlin, and PO Beary hold onto § 87(2)(b)'s bare foot as well as his upper torso. Multiple officers hold onto § 87(2)(b)'s leg. At 11:17, § 87(2)(b) cuffs are in-between his legs. § 87(2)(b) then says that he will put his cuffs back in the rear-cuff position. At 12:28 § 87(2)(b) brings his cuffs behind his back.

Sgt. Martillo (BR19) stated that while § 87(2)(b) dropped to the floor, Sgt. Martillo told the officers to leave him there. § 87(2)(b) tried to slip out of his cuffs by moving the cuffs from the rear to the front. In response, Sgt. Martillo put her leg on top of § 87(2)(b)'s legs to prevent him from getting his legs through the handcuffs (from rear cuff to front cuff). Sgt. Martillo did not recall making physical contact with § 87(2)(b)'s arms. Sgt. Martillo's threat to tase § 87(2)(b) along with the use of profanity, was a de-escalation tactic due to § 87(2)(b) attempts to escape by moving his handcuffs from the rear to the front of his body. In addition, § 87(2)(b) was irate and fighting officers' attempts to place his arms back in the rear-cuff position. Sgt. Martillo also did not independently recall whether § 87(2)(b) received clothing due to § 87(2)(b) immediately being escorted to a holding cell and her ending tour soon afterwards. Sgt. Martillo also stated that in this scenario, § 87(2)(b) would need to wait for clothing to be provided, as they did not have spare clothing on hand.

§ 87(2)(g)

A TRI was prepared for § 87(2)(b) (BR32). However, the report does not mention the events that took place inside the station house. A medical treatment of prisoner report (MTPR) was prepared for § 87(2)(b) (BR37). The report stated that § 87(2)(b) sustained § 87(2)(b) after becoming irate and combative.

NYPD Patrol Guide Procedure 221-01 (BR08) states that "Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances."

NYPD Patrol Guide 200-02 (BR17) states that officers are committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others.

Deputy Commissioner of Trials case 2018-18951 (BR34) states that officers have a responsibility to act with decorum when interacting with civilians, and that an officer's use of

profanity is unprofessional and discourteous. Exceptions are made for when an officer uses profanity during chaotic and stressful situations.

NYPD Patrol Guide 221-08 (BR21) states that a conducted electrical weapon (CEW) should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. Active aggression is defined as a threat or overt act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent. Active resistance includes physically evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. Furthermore, a taser should never be used on a prisoner who is rear-cuffed.

§ 87(2)(g)

It is therefore recommended that **Allegation W** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

It is therefore recommended that **Allegations X-Z** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

It is recommended that **Allegations AA and AB** be **Substantiated**.

Allegation (AC) Abuse of Authority: At the 69th Precinct station house, Police Officer Daniel Davidoff threatened § 87(2)(b) with the use of force.

Allegation (AD) Discourtesy: At the 69th Precinct station house, Police Officer Daniel Davidoff spoke discourteously to § 87(2)(b)

§ 87(2)(g)

BWC footage from PO Conlin (**BR18**) shows that at 12:17, § 87(2)(b) says, "Give me a chance to put it back," referring to the positioning of his handcuffs. As § 87(2)(b) starts moving his cuffs from his lower legs up on his body, PO Davidoff says, "I'm telling you bro, one wrong move and it's over for you." § 87(2)(b) says, "I'm not making no wrong move" and proceeds to place his cuffs behind his back. At 13:12, § 87(2)(b) stands up and his arms are cuffed behind his back. PO Davidoff says, "Go in there and chill the fuck out, bro." Officers escort § 87(2)(b) towards a holding cell.

PO Davidoff (**BR20**) stated that he made the above-mentioned statement because § 87(2)(b) was fighting officers' attempts to place his handcuffed arms behind his back, and he wanted to let § 87(2)(b) know of the potential consequences of his actions, which would be a felony charge for assaulting an officer. In addition, PO Davidoff considered the profanities he used to be "street-lingo" in an attempt to connect with § 87(2)(b) and de-escalate the situation. PO Davidoff also said "chill the fuck out" in order to get § 87(2)(b) to calm down and go into the holding cell. As someone who worked in anti-crime and in trying to connect with perpetrators, PO Davidoff believed that sometimes officers should use a little profanity, in a non-disrespectful way, to build some rapport. He was trying to fit in and "stoop down to their level" and "connect with them and their language."

NYPD Patrol Guide 200-02 (BR17) states that officers are committed to treating every citizen with compassion, courtesy, professionalism, and respect. Officers are expected to maintain a higher standard of integrity than is generally expected of others.

Deputy Commissioner of Trials case 2018-18951 (BR34) states that officers have a responsibility to act with decorum when interacting with civilians, and that an officer's use of profanity is unprofessional and discourteous. Exceptions are made for when an officer uses profanity during chaotic and stressful situations.

§ 87(2)(g)

It is recommended that **Allegation AC** be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

It is therefore recommended that **Allegation AD** be **Substantiated**.

Allegation (AE) Discourtesy: At the 69th Precinct station house, Police Officer Denise Garciatorres spoke discourteously to § 87(2)(b)

§ 87(2)(b) (BR03) stated that she went to the 69th Precinct station house in order to drop off clothing for § 87(2)(b). While waiting to speak with a sergeant, she received a call from the bodega owner, who told her that he called the police due to someone attempting to steal a beer from the store. § 87(2)(b) told the owner of the bodega to come to the police station because her son just got arrested in relation to the incident. As she was speaking on the phone, a female officer came up from behind her and tried to grab § 87(2)(b) phone from her hands while saying, "get the fuck off the phone. Give me the phone." § 87(2)(b) was placed in handcuffs by other officers. § 87(2)(b) described the female officer as a Hispanic female in uniform, approximately 5 feet 4 inches tall, with brown eyes and a short blonde hair in a ponytail.

Review of BWC video from PO Affatigato (BR22) and PO Okafor (BR23) capture the moment when § 87(2)(b) is placed in handcuffs. The video shows an officer taking part in § 87(2)(b) arrest that matched § 87(2)(b) description. In all three videos, no officer is heard using profanity toward § 87(2)(b) while she is being handcuffed. At 00:50 in PO Okafor's BWC video, Sgt. Martillo is seen grabbing § 87(2)(b) right hand and attempting to place it behind her back, while PO Okafor takes § 87(2)(b) cell phone away from her. A female officer that matches § 87(2)(b) description walks up behind them and assists Sgt. Martillo in handcuffing § 87(2)(b). The officer does not say anything while doing so. At 01:00 in PO Affatigato's BWC, Sgt. Martillo is heard saying, "I got one hand behind her back" while the female officer assists in holding § 87(2)(b) other arm (referring to the events captured in PO Okafor's BWC.) At 01:07, § 87(2)(b) asks if the officers were really doing this to her, and Sgt. Martillo responds, "Yeah, we're going to do this to you." § 87(2)(b) is successfully handcuffed, and officers escort her to stand in front of the front desk.

A CTS search for Hispanic female officers working at the 69th Precinct showed nine officers that matched or partially matched § 87(2)(b) description. A search on the NYPD photo terminal showed Police Officer Denise Garciatorres as the subject officer described by § 87(2)(b) and seen in BWC footage.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation AE** be **Unfounded**.

§ 87(4-b) § 87(2)(g)

[illegible]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR24**).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR25**).
- Det. Spera has been a member of service for 23 years and has been named as a subject in eight CCRB complaints and 11 allegations, none of which has been substantiated. § 87(2)(g)
- Det. Sharp has been a member of service for 18 years and has been named as a subject in seven CCRB complaints and 15 complaints, one of which was substantiated:
 - Case #200704116 contained a substantiated allegation of entering/searching the premises. The Board recommended charges, and the NYPD imposed instructions.

- § 87(2)(g)
- Lieutenant Arrindell has been a member of service for 15 years and this is the first CCRB complaint to which he has been a subject.
- PO Beary has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.
- PO Davidoff has been a member of service for six years and has been named as a subject in eight CCRB cases and 23 allegations, of which five were substantiated:
 - Case #201904585 involved substantiated allegations of entry of premises, search of person, discourtesy (word), and failure to provide RTKA card. The Board recommended formalized training and the NYPD imposed formalized training.
 - Case #202103942 involved a substantiated allegation of a discourtesy (word). The Board recommended Command Discipline A and the NYPD imposed no penalty.
 - § 87(2)(g)
- PO Garciatorres has been a member of service for two years and has been named as a subject in one CCRB complaint and two allegations, which were not substantiated. § 87(2)(g)
- PO Conlin has been a member of service for two years and has been named as a subject in one CCRB complaint and one allegation. The investigation is still ongoing.
- PO Link has been a member of service for six years and this is the first CCRB complaint to which he has been a subject.
- PO Meneses has been a member of service for three years and has been named as a subject in two CCRB complaints and three allegations, which were not substantiated. § 87(2)(g)
- PO Walter has been a member of service for three years and has been named as a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- Sgt. Martillo has been a member of service for 15 years and has been named as a subject in seven CCRB complaints and 13 allegations, of which three were substantiated:
 - Case #202108840 involved substantiated allegations of discourtesy (gesture), discourtesy (other), and offensive language (other). The Board recommended command discipline B and charges and the NYPD has not yet imposed discipline.
 - § 87(2)(g)
- PO Sannella has been a member of service for 11 years and has been named as a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- PO Yaqubi has been a member of service for five years and has been named as a subject in one CCRB complaint and two allegations. The case is still ongoing. § 87(2)(g)
- PO Hammond has been a member of service for four years and has been named as a subject in one CCRB complaint and two allegations. The case is still ongoing. § 87(2)(g)
- PO Morris has been a member of service for nine years and has been named as a subject in seven CCRB complaints and 30 allegations, of which two were substantiated (**BR41**):
 - Case # 201904585 involved substantiated allegations of an entry and failure to provide an RTKA card. The Board recommended formalized training and the NYPD imposed formalized training. § 87(2)(g)

- This complaint was not suitable for mediation.
- On April 25, 2023, a FOIL complaint was submitted to the Office of the Comptroller. Results will be attached upon receipt (**BR26**).

Squad: 10

Investigator: Justin Huang Investigator Huang 7/21/2023
Signature Print Title & Name Date

Squad Leader: Maura R. Roche IM Maura R. Roche 08/07/2023
Signature Print Title & Name Date

Reviewer: _____